

Draft

Po 7250 Naming Right Policy

The Board of Education seeks private funds to enhance the educational needs of the District, especially to promote a level of excellence that would otherwise not be possible without external support.

The Board may grant naming rights for District properties, facilities, and programs. The acceptance of such agreements must always be consistent with the mission, purposes, and goals of the district. All naming rights shall be approved by the Board.

The Board shall not grant a naming right without the informed consent of the named party or the named party's legal representative. The Board reserves the right, in all cases, to refuse to name a particular property, facility, or program.

Two Types of Naming Rights

There are two circumstances in which naming rights may be granted:

- A. Naming Rights in Consideration, and
- B. Naming Rights in Recognition.

The following criteria may be considered when naming District properties, facilities, and/or programs:

Naming Rights in Consideration

"Naming Rights In Consideration" are granted in consideration of financial contributions or other commercial transactions. Naming rights may be granted in return for provision to the District of an appropriate financial contribution, including provision or supply of equipment, materials, land or services. It is expected that a specific agreement, including length of time, about the nature of naming rights would be drawn up between the parties or their representatives, such agreement to be governed by the provisions of this policy. Nothing in this policy shall be construed as to provide a provider of goods, services or financial contribution as an automatic naming right. All such rights are subject to Board approval under the terms of this policy. The District shall have the exclusive discretion to determine whether to pursue, accept, or decline an opportunity to name properties, facilities, or programs.

Naming Rights in Recognition

"Naming Rights in Recognition" are granted in recognition of any significant contributions to the District that it wishes to honor. These contributions can be financial or other gifts from donors, or meritorious service, and are at the sole discretion of the Board in agreement with the party or their representatives. Naming rights may be granted at the sole discretion of the Board in recognition of the party it wishes to honor.

One of the following three criteria must be fulfilled in order for the granting of naming rights in recognition to be considered:

- A. Recognition of outstanding service to the District; or outstanding service to the community.

- B. Recognition of the achievement(s) of distinguished alumni.
- C. Recognition of a noteworthy financial or other contribution from a donor (be it way of donation, bequest, etc.), such contribution being voluntary and not rendered in consideration of the granting of naming rights. The District may solicit suitable donations from the advocates of such recognition, particularly if the request comes from other than family members.

If recognition is for an individual once employed by the District, the individual must have been separated from employment from the District for at least five (5) years. In the case of a naming request involving a deceased individual, the individual must have been deceased for at least five (5) years.

The granting of naming rights in recognition is at the sole discretion of the Board, with the agreement of the party or their representatives.

Granting Naming Rights

In granting naming rights, either in consideration or in recognition, due regard should be taken of the need to maintain an appropriate balance between commercial considerations and the role which names of buildings and space play in contributing to the District's sense of identity as well as in assisting students, staff and visitors to orient themselves within the campus/facility. Any and all entitlements and attributions granted in conjunction with naming rights, including but not limited to signage, must be approved by the Board prior to installation in or on District property. Any permanent or nonpermanent fixtures shall become the sole property of the District. The District recognizes that the official names of its properties, facilities, and programs are vital to its public image. Therefore, the granting of naming rights must always be consistent with the District's vision, mission and shared purpose. The long-term effects of the naming rights must be considered.

In addition to the foregoing, the Board of Education will apply the following guidelines in considering naming requests:

- A. No properties, facilities, or programs may be named after an individual or group if doing so would promote or contain references to alcohol, tobacco, drugs, drug paraphernalia, weapons, lewd, vulgar, obscene, pornographic or illegal materials or activities, gambling, violence, hatred, sexual conduct or sexually explicit material.
- B. No properties, facilities, or programs may be named after an individual or group if doing so would promote any specific religion or religious, ethnic or racial group, or political candidate.
- C. No properties, facilities, or programs may be named after an individual or group if doing so would create, or be reasonably foreseeable to create a substantial disruption in the school environment or inhibit the functioning of any school.
- D. No properties, facilities, or programs may be named after an individual or group if doing so would create, or be reasonably foreseeable to create a material interference with school activities or the educational process.

- E. A naming request may be rejected by the Board of Education if naming the properties, facilities, or programs after a particular individual or group would be inconsistent with the educational objectives of the school district, inappropriate, or inconsistent with the District's mission.
- F. A naming request may be rejected by the Board of Education if naming the properties, facilities, or programs after a particular individual or group would otherwise violate school policy and/or State or Federal law.

Personal Names

For properties, facilities, or programs to be named after a person, that person shall be of exemplary moral character; have made an outstanding contribution to education, humanity or community; or have displayed outstanding leadership; be a person of historical significance; or have made a major contribution to the District. It shall be the responsibility and right of the Board to determine whether the person meets these criteria. The Board reserves the right to revoke the name, should it discover information about the individual, that would lead to the individual not meeting the requirements set forth herein. The Board will evaluate the financial value of naming rights based on a review of the market for naming rights.

Company, Group or Product Names

If named after a company, group and/or product, the named entity or product must, as determined by the Board, have and maintain an exemplary record and positive public image. The Board reserves the right to revoke the name should it discover information about the company, group and/or product that would lead to the individual/entity not meeting the requirements set forth herein.

Transferability

Naming rights are not transferable. The right to update an already-established name (e.g., if a company or individual's name changes) may, but is not required to, be granted by the Board. The cost of such update shall be the exclusive responsibility of the party requesting the update. Where a name no longer accurately reflects the name of the original individual/entity, the name may be removed unless an update is agreed-upon by the Board and the named individual/entity.

Right to Govern Use

The District retains all authority to govern the use of the properties, facilities, or programs being named and/or to make changes with regard to the use of any particular properties, facilities, or programs at any time. The District shall also retain all authority to govern the use of any contributions made to the District pursuant to this policy.

Termination of Naming Rights

Naming Rights in Consideration shall terminate as set forth in the applicable written agreement.

Naming Rights in Recognition shall be modified upon demolition and rebuild of a property or facility and shall be terminated upon discontinuation of a program. In the event of the demolition and rebuild of a property or facility, the new naming of said property or facility shall continue to incorporate the prior naming rights, until such time as the next demolition and rebuild. In the event a property or facility is transferred, conveyed, closed, deconstructed, destroyed, and not rebuilt or renovated, Naming Rights shall terminate.

Once a property, facility, or program has been officially named, it shall not be renamed, except for reasons identified in this policy.

Termination by the District

The Board reserves the right to revoke, at the Board's sole discretion, the name should it discover information about the individual, company, group and/or product that would lead it to conclude the individual, company, group and/or product do not meet the requirements set forth herein. The Board shall remove the name of a property, facility, or program where/when the name no longer accurately reflects the

name of the original individual/entity granted rights under this policy where such individual/entity does not agree to.

Termination by the Named Party

The named party may, without refund of consideration, at its sole discretion, terminate its acceptance of the naming rights, prior to the scheduled termination date, upon request to the Board of Education. In such a case, the named party shall be solely responsible for all costs of removal of the names.

Naming Rights Agreements

Any individual or group making a naming rights request will also be required to enter into a separate naming rights agreement that contains additional terms and conditions.